

TERMS AND CONDITIONS

All registrations submitted to access and use UniConnected are subject to the following Terms and Conditions.

1. TERMS OF USE

These Terms and Conditions govern an approved Industry Partner's (**User**):

- access to, and use of, the UniConnected platform including using the services and functionality made available through UniConnected; and
- viewing and interacting with any content, information, communications or other material provided on UniConnected.

Please read these Terms and Conditions carefully before continuing to use UniConnected. If you do not agree to abide by these Terms and Conditions you must not register for an account and must not access and use the UniConnected platform.

A User's acceptance of these Terms and Conditions is indicated by confirming acceptance of these terms at the end of this form.

2. REGISTRATIONS

A User must register for an account to access and use UniConnected platform.

All registrations submitted by a User to access and use the UniConnected platform need to either:

- conform to the direct registration option which includes identified email address, or other relevant university identifies; OR
- be approved by University staff before a User is granted access to the UniConnected platform.

Registrations are processed from Monday to Friday between 9am and 5pm, except for University holidays and national and state public holidays. We aim to process registrations within three working days of lodgement.

3. ACCOUNT

A User is responsible for their account. This includes:

- determining who is authorised to use their account;
- not allowing an unauthorised person to use their account or transferring their account to someone else;
- notifying the University immediately if they become aware of any unauthorised access or use of their account;
- ensuring their browser is current with the latest patches applied to protect their information. Failing to do this may compromise the security of the User's information.

The University may immediately suspend or terminate access to a User's account if:

- the User is in breach of these Terms and Conditions; or
- any of the information the User provides for the purpose of registering for an account to access and use UniConnected is found to be misleading or deceptive.

4. UNICONNECTED

The UniConnected platform is a way for employers to recruit students and graduates at The University of Melbourne for paid employment positions. Employers will register with UniConnected to review student profiles to determine suitability for current vacancies at the User's organisation.

By registering to access and use UniConnected, Users agree to access and use UniConnected at their own risk. Users agree that the University will not be liable for any inaccuracies or errors relating to any information on and transferred via UniConnected. Users also agree that the University is not an agent for any party.

The University does not guarantee that UniConnected, or any content on it, will always be available, uninterrupted or error-free.

The University will not be liable if UniConnected is unavailable to a User due to any reason including computer downtime attributable to malfunctions, upgrades, preventative or remedial maintenance activities, interruption in telecommunications supply or otherwise.

The University does not guarantee the delivery or security of communications over the internet as such communications rely on third party service providers, and electronic communication (including electronic mail) is vulnerable to interception by third parties.

Whilst the University takes reasonable precautions to protect information transmitted via UniConnected, the University cannot and does not guarantee the security or confidentiality of these communications or the security of UniConnected. The University will not be liable to a User for any loss or damage a User may suffer as a result of the loss of, corruption or unauthorised access, modification or disclosure of information or content uploaded to UniConnected by the User.

The University does not provide, and has no control over, communications, networks or services, the internet or other technology required or used across UniConnected and accepts no responsibility for any direct or indirect loss in any form associated with them, whether due to congestion, technical malfunction, viruses or otherwise.

The University does not recommend or endorse any student profiles featured on UniConnected. Users must undertake their own assessment of potential students to ensure they are suitable for any potential employment and verify any information conveyed on UniConnected by students.

The University will be under no liability to Users in respect of any loss or damage (including consequential loss or damage, such as loss of opportunity or loss of revenue) which may be suffered or incurred or which may arise directly or indirectly in connection with their access and/or use of the UniConnected platform.

User's acknowledge that they indemnify the user against any direct loss suffered by the

5. LEGISLATION AND RESERVED RIGHTS

By registering to use UniConnected, Users will have access to a range of student profiles.

All jobs offered via contacts through UniConnected must comply with employment and other relevant laws in the country or state where the work will be carried out. In Australia this includes but is not limited to the: *Fair Work Act 2009* (Cth), *Equal Opportunity Act 2010* (Vic), *Competition and Consumer Act 2010* (Cth), *Sex Discrimination Act 1984* (Cth), *Age Discrimination Act 2004* (Cth), *Disability Discrimination Act 1992* (Cth) and *Racial Discrimination Act 1975* (Cth).

The University of Melbourne reserves the right to refuse or suspend an organisation's use of the UniConnected platform without notice or reason.

The reasons for this may include:

- non-compliance with applicable terms and conditions;
- misleading, inaccurate or incorrect information has been provided;
- a complaint about the User has been received;
- where non-compliance with the law is reasonably suspected;
- the job opportunity is considered to be inappropriate or the behaviour of the User in their involvement with the University is deemed by staff to be unethical or inappropriate.

6. UNACCEPTABLE JOBS

Users must not recruit University of Melbourne students for the following jobs:

- Unpaid/voluntary positions
- Positions paid by commission only
- Positions where payment is by profit share
- Positions that offer less than award wages
- Positions that offer any sort of 'board in exchange' arrangement where the student receives accommodation as payment for work performed
- Positions that do not offer a genuine employment opportunity or those that require applicants to register with an organisation for possible opportunities or pay a third-party
- Positions lodged by a registered business offering 'cash' or 'cash in hand'
- Positions offering payment by 'piece rates', ie where payment is per product produced, per delivery, per sale made etc.
- Business opportunities and franchise ownership opportunities
- Pyramid schemes

- Modelling
- Work involving any unpaid training/trial periods, or reduced pay for training/trial periods, except where a federal or state award makes allowances for such arrangements
- Work involving any illegal activity or that may pose a serious risk to workers
- Any work which requires the employee to purchase a product or service, or requires an application fee, registration fee, security deposit or similar as a condition of employment
- Unpaid internships – please contact the University if you would like to arrange an unpaid internship
- Overseas voluntary positions
- Scholarships that are used to pay a student's wage
- Research participation opportunities (these can be advertised as a news item only)
- Jobs offered by a foreign employer offering work within Australia who do not have an established Australian office.

7. DATA USAGE

A User's email address may be used to:

- update them about UniConnected
- clarify job details/job offers as necessary
- alert them to other job advertisements
- send career-related / employment notices
- undertake labour market research
- assist in managing the UniConnected service
- for liaison purposes with the University
- conduct syndicated or sponsored research on behalf of or in the direct interest of the University's strategic purposes.

For more details, please refer to our privacy collection notice below.

8. PRIVACY

By providing personal information to the University, a User consents to the collection, use, storage and disclosure of that information as described in the University's Privacy Policy and Privacy Collection Notice below. This includes consent to the collection, use, storage and disclosure of sensitive information (as that term is defined in the *Privacy and Data Protection Act 2014* (Vic)) a User provides to us.

9. GENERAL TERMS

These Terms and Conditions, their subject matter and formation, are governed by the laws of the State of Victoria. Users agree that the courts having jurisdiction in Victoria will have jurisdiction over any dispute arising under or in any way related to these Terms and Conditions and their subject matter.

Except as expressly stated in these Terms and Conditions, these Terms and Conditions constitute the entire agreement between the parties, and supersede all prior and contemporaneous agreements, proposals or representations, written or oral, concerning the subject matter of these Terms and Conditions.

Any provision of these Terms and Conditions which is invalid or unenforceable is to be read down, if possible, so as to be valid and enforceable, and, if that is not possible, the provision shall be severed to the extent of the invalidity or unenforceability, without affecting the remaining provisions of these Terms and Conditions.

We make no representation or warranty that any services, information or content accessible through UniConnected is appropriate or available for use in locations outside Australia. If you choose to access UniConnected from other locations, you do so at your own risk and are responsible for compliance with all applicable laws. You are not authorised to access UniConnected from any location where doing so would be illegal.

10. CONTACTING US

If you have any general questions about UniConnected, please contact us on UniConnected-team@unimelb.edu.au.